

ORDINANCE No. ? 74

AN ORDINANCE SETTING RATES AND GUIDELINES FOR WATERWORKS

Sec. 1. - Rates.

(a)The following rates be and they are hereby established as the rates to be charged by the Decatur Municipal Water Works System for water furnished to all customers of said system;

(b)For every person, firm or corporation, whether domestic, commercial or industrial, within the corporate limits of the Town of Decatur the following rates for the upward consumption or use of water shall apply, exclusive of any local, state or federal tax now or later put in force:

(1) First 2,000 gallons consumed, minimum charge: \$18.93

(2) \$4.75 per 1,000 gallons used after first 2,000

* The sewer rate shall be in an amount equal to the water bill.

Sec. 2. - Service and installation charges.

The following service or installation charges be and they are hereby established:

(1) Every person, firm or corporation, within the corporate limits of the Town of Decatur, whether domestic, commercial or industrial, shall pay the following service or installation charge before connection to the water system will be made:

A. water tap and connection.....\$550.00

B. sewer tap and connection.... \$550.00

Sec. 3. - Billing due; penalty.

All charges for water used [and]/or consumed according to the scale herein set out shall be due and payable by the tenth of the next month immediately following the month in which said water was used and/or consumed. A penalty charge of ten percent of gross amount of account will be charged if the account is not paid by the tenth of the month in which same is due and the account will be declared delinquent.

If the delinquent account of a property owner remains unpaid and is carried forward to the following month and the total bill is not paid by the tenth of the month, the water superintendent of the Town of Decatur is hereby authorized, empowered and directed to discontinue water customer's service without notice. If the delinquent account of a renter of property remains unpaid after the tenth of the current month; the water superintendent of the Town of Decatur is hereby authorized, empowered and directed to discontinue said water customer's service without notice. Any customer whose service has been discontinued may have his water service resumed by paying all water charges due plus a charge of \$50.00 for reconnection service.

Sec. 4. - Payments.

All bills for water service [shall] be paid at the Town hall in the Town clerk's office and to the Town clerk or an assistant. Payments shall be made by cash, money order, valid personal checks, or bank drafts.

Sec. 5. - Deposits; refunds.

Deposits for Home Owners shall be \$150.00 and \$275.00 for Renter's. All customers who have meter deposits and whose water service has been discontinued for any reason, [shall] be refunded the full amount of such deposits, by the clerk, less any charge for water service actually rendered to said customer and remaining unpaid.

Sec. 6. - Unauthorized connections or tampering; penalty.

Any person, firm or corporation who knowingly makes or causes to be made, any connection to the water system, tampers with, molests, defaces, or in any way interferes with any equipment connected with the Town water works system, shall be guilty of a misdemeanor and upon conviction, be fined not less than \$25.00 nor more than \$300.00 for each such offense.

Sec. 7. - Authority for penalty.

The Town water commissioner is hereby authorized to make whatever rules and regulations are necessary for the enforcement of the provisions of this article.

Sec. 8.- The Town Clerk is hereby authorized and directed to cause to be published in the Newton County appeal a copy of this Ordinance once and this ordinance to be in full force and effective thirty (30) days from and after the date of publication.

The Town shall periodically review the existing user charges to ensure sufficient revenue is being collected for operation, maintenance, and debt retirement.

A vote was called for on the motion of Alderman Phil Sutphin and seconded by Alderman Mark Buntyn with the following results:

Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 1, Bill Johnston
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 2, Mark Buntyn
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 3, Mike Harris
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 4, Danny Cherry
Aye	<u> X </u>	Nay	<u> </u>	Alderman Ward 5, Phil Sutphin

The motion carried.

SO ORDERED, AMENDED AND CLARIFIED NUNC PRO TUNC to the date of approval of FY23 budget with an effective date of October 1, 2022, this the 7th day of March, 2023.

Mayor

Attested By:

Tanya Tanner, Decatur Town Clerk

Amended: October 1, 2022